RAMIREZ v FAMILY DOLLAR, LLC, et al

25CV48285

DEFENDANT'S MOTION TO COMPEL ARBITRATION

Before the Court is a motion to compel arbitration filed by Defendants Family Dollar LLC, Family Dollar Services, LLC, and Family Dollar Operations, LLC (collectively "Defendants").

I. Factual and Procedural Background

Plaintiff began working for Defendants as a clerk in or around June 5, 2023. (Complaint ¶ 12.) When Plaintiff was initially hired, she informed her manager, Amy, that she suffered from mental disabilities, but was able to perform the essential duties of her position with reasonable accommodation without endangering the health or safety of herself or other employees of Defendants. (*Id.* ¶ 13.) On or around November 5, 2023, Plaintiff requested medical leave due to a cancer diagnosis. (*Id.* ¶ 14.) Instead of granting the request for leave, Defendants terminated Plaintiff on November 6, 2023. (*Id.* ¶ 15.)

Plaintiff alleges she was wrongfully terminated because of her disability and request for accommodation. Plaintiff filed her complaint alleging various violations of California's Fair Housing and Employment Act.

On January 26, 2026, Defendants moved for an order compelling the matter to arbitration pursuant to an alleged arbitration agreement ("Agreement") between the parties. Plaintiff opposes the motion.

II. Procedure and Burden of Proof on Petition to Compel Arbitration

In determining the enforceability of an arbitration agreement, the court considers "two 'gateway issues' of arbitrability: (1) whether there was an agreement to arbitrate between the parties, and (2) whether the agreement covered the dispute at issue." (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) The trial court must first determine whether an "agreement to arbitrate the controversy exists." (Code Civ. Proc., 1281.2.) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Rosenthal v. Great Western Fin. Securities Corp.*

(1996) 14 Cal.4th 394, 413.) The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) Alternatively, the moving party can meet its initial burden by setting forth the agreement's provisions in the motion. (Cal. Rules of Court, rule 3.1330.)

It then becomes respondent's burden in opposing the motion to prove by a preponderance of the evidence any fact necessary to the opposition. (*Espejo*, *supra* 246 Cal.App.4th at 1057.) "Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration 'if the court determines that an agreement to arbitrate the controversy exists.'" (*Avery v. Integrated Healthcare Holdings, Inc*. (2013) 218 Cal.App.4th 50, 59, quoting Code Civ. Proc. § 1281.2.)

Generally, on a petition to compel arbitration, the court must grant the petition unless it finds either (1) no written agreement to arbitrate exists; (2) the right to compel arbitration has been waived; (3) grounds exist for revocation of the agreement; or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Desert Reg'l Med. Ctr. v. Miller*, (2022), 87 Cal.App.5th 295, 308.)

III. Legal Analysis

Defendants have met their initial burden of showing the existence of the Agreement that appears to have been signed by Plaintiff on September 23, 2023. (Declaration of Vincent Votta ("Votta Decl.") ¶31, Ex. C.) (*Espejo v. S.Cal. Permanente Med. Grp*. (2016) 246 Cal.App.4th 1047, 1060 [party moving to compel arbitration may meet their initial burden to show an agreement to arbitrate by attaching a copy of the agreement purportedly bearing the opposing party's signature].) Defendants assert that the Agreement was signed as a necessary and indispensable part of the online application process. (Votta Decl. ¶ ¶ 29-31.)

However, Plaintiff contends not only that is the signature on the agreement is not hers, but also that she never submitted an online application. Specifically, Plaintiff avers that the only application she submitted was a hard-copy application, filled in by hand, and submitted in person at the store location of work located at 3502 Spangler Lane, Copperopolis, California. (Declaration of Ramona Ramirez ("Ramirez Decl.") ¶ ¶ 2-3.) Plaintiff alleges that *after* she was already hired, her manager Amy called her into her office to let her know that certain paperwork needed to be completed. (*Id.* ¶ 7.) Amy asked Plaintiff to use Amy's office computer to fill out the paperwork but there was an issue with the computer. (*Id*. ¶ ¶ 8,9.) Amy informed Plaintiff that Amy would take care of the paperwork and Amy later informed Plaintiff that she had in fact done so. (*Id*. ¶¶ 10, 11.) Plaintiff never saw the completed paperwork and believes that Amy signed the documents, including the Agreement, on Plaintiff's behalf without Plaintiff's knowledge. (*Id.* ¶¶ 10, 11.) Because Plaintiff has asserted under oath that she did not see or sign the arbitration agreement, she has successfully carried her burden of producing evidence that challenges the authenticity of the agreement. (*Gamboa v. Ne. Cmty. Clinic*, (2021) 72 Cal.App.5th 158, 165 [declaring under penalty of perjury that the opposing party never saw the arbitration agreement or signed it is sufficient evidence to challenge the authenticity of the agreement].)

Accordingly, the burden returns to Defendants to show, by a preponderance of the evidence, that the agreement is valid. (*Gamboa*, *supra* 72 Cal.App.5th at 165.)

In reply, Defendants submit a second declaration from Vincent Votta ("Second Votta Decl.") averring that Defendants only hire individuals through the online process. (*Id.* ¶ 9.) He further avers that she could not have submitted her online application without agreeing to the arbitration agreement. (*Id.* ¶10.) Defendants provide no evidence or declaration from Amy – or anyone else present with Plaintiff when she alleged signed the Agreement – that contradicts Plaintiff's sworn statement. They further provide no evidence to contradict Plaintiff's sworn statement that she was hired in June of 2025, *via* the hard-copy application – and that she later was asked to complete other documents, by inference including the arbitration agreement. Thus, Defendants have not met their burden to show that the arbitration agreement is valid.

Based on the foregoing analysis, the motion to compel arbitration is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.